

CEST Assessment Evidence Trail

HMRC Check Employment Status for Tax — Contractor Agreement with Cogram Technologies GmbH

Self-employed for tax purposes for this work

HMRC CEST determination — 8 March 2026

HMRC will stand by this result as long as it reflects the actual or expected working practices. If these working practices change, the CEST tool should be used again.

1. Contract Summary

Parties

Contractor	Aaron Vinod (Sole Trader)
Client	Cogram Technologies GmbH
Platform	Deel (payment agent)
Contract Ref	38p5y5n

Terms

Role	Product Engineer (Mid, IC Level 2)
Start Date	3 March 2026
Rate	€5,833.34/month (€70,000.08/year)
Notice	30 days (1 day during 8-week probation)

Special Clauses

- Stock Options

28,800 options, 4-year vesting with 1-year cliff, grant within 1 year of start date
- Probation

First 8 weeks: either party may terminate with 1 day's notice

2. CEST Answers with Contract Evidence

Each answer is mapped to the specific clause in the Contractor Agreement (REF: 38p5y5n) that supports it. Where no contract clause applies, the justification is marked as factual.

About You

QUESTION	ANSWER	CLAUSE	CONTRACT EVIDENCE
Who are you?	Worker	N/A	Completing as the contractor (worker perspective)
Contract in place?	Yes	Agreement	Contractor Agreement REF 38p5y5n, effective 3 March 2026
Services through limited company, partnership or unincorporated association?	No	Deel Summary	Contracted as individual sole trader, not through intermediary. IR35 intermediary rules do not apply.
Are you an office holder?	No	N/A	Not a director, trustee, or board member of Cogram. Separate directorship of Aviini Ltd is unrelated to this engagement.
Job role category	Communications and IT	Deel Summary	Role: Product Engineer. Falls under "developer, IT architect" in CEST categories.

Personal Service

QUESTION	ANSWER	CLAUSE	CONTRACT EVIDENCE
Already started working?	Yes	N/A	Factual: started 3 March 2026
Ever sent a substitute?	No, it has not happened	N/A	Factual: no substitute has been sent to date
Client right to reject a substitute?	Yes	Cl. 1.4	"Contractor may appoint a suitably skilled substitute... provided that Client is satisfied that the sub-contractor possesses the necessary skills, expertise and resources"
Paid another person to do significant amount of work?	No	N/A	Factual: all work performed personally

Control Key Factor: Self-Employment

QUESTION	ANSWER	CLAUSE	CONTRACT EVIDENCE
Right to move you from agreed task?	No, new contract required	Cl. 1.1	"A Statement of Work may be amended only by a signed (by each party's authorized signatory) and written agreement of the parties. "
Right to decide how work is done?	No, you solely decide	Cl. 1.2, Preamble C, D	Cl. 1.2: "Contractor will determine, in Contractor's sole discretion , the manner and means by which the Services are accomplished" Preamble C: "excluding as of now any intervention by Client regarding the modalities of performance " Preamble D: "excludes any subjection to the power of direction or control "

QUESTION	ANSWER	CLAUSE	CONTRACT EVIDENCE
Right to decide working hours?	No, you solely decide	Cl. 1.3, Preamble C	Cl. 1.3: "Contractor will determine the time , place and order in which Contractor will perform the Services" Preamble C: "the time of execution of the Service"
Right to decide where you work?	No, you solely decide	Cl. 1.3	"Contractor will perform the Services at Contractor's offices or facilities " "Contractor will determine the time, place and order"

Financial Risk

QUESTION	ANSWER	CLAUSE	CONTRACT EVIDENCE
Buy equipment before payment?	No	Cl. 1.3	"using Contractor's instruments, equipment and tools" – own personal laptop exists; no heavy/specialist equipment required for software engineering
Fund vehicle costs?	No	N/A	Factual: fully remote work from Cambridge, UK. No vehicle costs for this engagement.
Buy materials?	No	N/A	Factual: software engineering role. No physical materials purchased or left behind.
Fund other costs?	No	N/A	Factual: no travel or external premises required. Home office costs are standard sole trader business expenses.
How paid?	Hourly, daily or weekly rate	Deel Summary	Fixed monthly rate of €5,833.34 paid via Deel. Time-based compensation (equivalent to regular rate).
Put right unsatisfactory work?	Fix in usual hours at usual rate	Cl. 2.1	Monthly rate payment with no unpaid rework clause. Any fixes done during normal engagement at same rate.

Worker's Involvement

QUESTION	ANSWER	CLAUSE	CONTRACT EVIDENCE
Paid-for corporate benefits?	No	Cl. 3.1	"Contractor will not be entitled to any statutory benefits payable to employees... including, without limitation, any retirement or pension benefits, social security contributions... vacation, holiday, or illness payments "
Management responsibilities?	No	Cl. 3.2	"Contractor will have no authority to enter into agreements that bind Client... will not hold itself out as being an employee, agent, partner or assignee of Client"
How introduce yourself?	Independent worker on client's behalf	Cl. 3.1, 3.2	Cl. 3.1: "independent contractor acting as a service provider to Client, and not that of an employee" Cl. 3.2: "will make such absence of authority clear in its dealings with any third parties"

Worker's Contract

QUESTION	ANSWER	CLAUSE	CONTRACT EVIDENCE
Contract stops similar work for others?	Yes	Cl. 7.4	Non-compete clause: cannot participate in competitive business during contract term without written consent
Ownership rights in contract?	Yes	Cl. 4.2	"all Contractor Work Product will be the sole and exclusive property of Client"
Rights belong to client?	Yes	Cl. 4.2	"Contractor hereby irrevocably transfers and assigns to Client... all right, title and interest in and to Contractor Work Product, including all worldwide patent rights... copyright rights, trademarks, trade secret rights"

QUESTION	ANSWER	CLAUSE	CONTRACT EVIDENCE
Previous contract with this client?	No	N/A	Factual: first engagement with Cogram Technologies GmbH
First in a series of contracts?	Yes	N/A	Factual: initial contract, potential for ongoing engagement
Majority of available working time?	Yes	N/A	Factual: €70K/year contract is primary income source. Also works on personal project (ScrollBuddy) in own time.
Similar self-employed work for others in last 12 months?	No	N/A	Factual: previous work was as co-founder/CTO of LINQ (own startup) and personal product (ScrollBuddy). Not contracted self-employed work for external clients.

3. Why Self-Employed: Factor Analysis

● Self-Employment Indicators (Decisive)

HMRC determined self-employed because **the client does not have control over this work**. The following factors were decisive:

- **Sole discretion over manner and means** (Cl. 1.2) — contractor decides how work is done
- **Control over time and place** (Cl. 1.3) — contractor sets own hours and location
- **Autonomous collaboration** (Preamble C, D) — contract explicitly excludes client direction/control
- **Task-specific engagement** (Cl. 1.1) — scope changes require new written agreement
- **No corporate benefits** (Cl. 3.1) — no pension, holiday, sick pay
- **No management authority** (Cl. 3.2) — cannot bind client or manage employees
- **Independent status** (Cl. 3.1, 3.3) — explicitly not a contract of employment
- **Substitution right exists** (Cl. 1.4) — contractor may appoint substitutes (subject to client approval)

● **Employment Indicators (Present but Outweighed)**

These factors point toward employment but were insufficient to change the overall determination:

- **Non-compete clause** (Cl. 7.4) — restricts competitive work during contract term
- **IP assignment** (Cl. 4.2) — all work product belongs to client
- **Client can reject substitutes** (Cl. 1.4) — substitution not unconditional
- **Fixed monthly rate** — time-based rather than project/deliverable-based pay
- **Majority of working time** — primary income source
- **First contract, no prior self-employed history** — no established pattern of contracting
- **Fix work at usual rate** — no financial risk from unsatisfactory work

Note on "control" and code reviews: The CEST "control" test assesses whether the client dictates *how* work is performed (process control), not whether quality assurance practices exist. Code reviews, merge approvals, and CI checks are industry-standard quality gates applied equally to employees and contractors. Working within an existing tech stack (Python, TypeScript) and following existing architecture patterns are project specifications, not process control. HMRC's Employment Status Manual (ESM11070) distinguishes between controlling the process and checking deliverable quality.

4. Contract Reference

Contractor Agreement Details

Agreement Type	Deel Standard Contract
Reference	38p5y5n
Client Entity	Cogram Technologies GmbH (German GmbH, reg. 356031874)
Client Address	Oppelner Str. 30, Berlin 10997, Germany
Client Contact	ricardo@cogram.com

Payment Agent	Deel Inc., 425 1st St, San Francisco, CA 94105
Governing Law	German law (Cl. 10.5)
Contractor Tax Status	UK Sole Trader (Self Assessment)
Tax Responsibility	Contractor responsible for all Income Tax and NI (Cl. 3.3)

Scope of Work (from Deel Summary)

- Design and develop new products in alignment with strategic objectives
- Conduct testing and validation of product designs
- Collaborate with cross-functional teams to integrate features
- Analyze product performance data for improvement
- Oversee prototyping process
- Document product specifications, design changes, and testing results
- Support resolution of technical issues

5. Document Information

CEST Assessment Date	8 March 2026
CEST Result	Self-employed for tax purposes
CEST File Reference	CEST_Cogram_Aaron_Vinod_2026-03-08
Evidence Trail Created	8 March 2026
Prepared By	Aaron Vinod
Contract Reviewed	Cogram-Standard-Deel-Contract.pdf (21 pages)

CEST Tool: gov.uk/guidance/check-employment-status-for-tax
Employment Status Manual: gov.uk/hmrc-internal-manuals/employment-status-manual

IR35 Guidance: gov.uk/understanding-off-payroll-working-ir35